

26STCV07690 26STCV07690

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C316%2C07%2F09%2F2026

Source SHA-256: 4f0a008439429f50d05fbdeb0947b218add1da73f5b73dbff68f6e83246f1e21

Case Number: 26STCV07690 Hearing Date: July 9, 2026 Dept: 316

BACKGROUND

This is an unlawful detainer matter. Plaintiff

Tripalink Property Management, Inc. alleges that Defendant Cho Luxury Rentals owes over \$14,000 in past due rent.

On March 10, 2026, Plaintiff filed a complaint against Defendant.

On June 8, 2026, Plaintiff filed a Motion to Consolidate ("Motion").

On July 8, 2026, an untimely opposition was filed.

TENTATIVE RULING

Plaintiff's Motion to

Consolidate is DENIED without prejudice. Once Plaintiff relates the three cases into a single department, it may move to consolidate the cases in said department.

LEGAL STANDARD

The trial court is authorized to consolidate pending "actions involving a common question of law or fact" so as to "avoid unnecessary

costs or delay.” (Code Civ. Proc., § 1048, subd. (a).) The decision to consolidate pending actions is a matter wholly committed to

the trial court’s discretion. (National

Electric Supply Co. v. Mt. Diablo Unified School District, (1960) 187 Cal.App.2d 418, 421.) However, Los

Angeles Superior Court Local Rule 3.3, subdivision (g)(1) states that

consolidation cannot occur until “[a] motion to consolidate two or more cases

[is] noticed and heard after the cases, initially filed in different departments, have been related

into a single department, or if the cases were already assigned to that

department.”

DISCUSSION

Here, Plaintiff seeks to

consolidate this case (Case No. 26STCV07690) with two other cases (Case No.

26STCV06887 and Case No. 26STCV07688). (See Motion, p. 2, ¶ 1(a)-(c).) However,

these three cases have not been related into a single department. (See LASC Local

Rule 3.3, subd. (g)(1).) Rather, only Case No. 26STCV06887 and Case No.

26STCV07688 have been related into a single department (Dept. 730). (See Case No.

26STCV06887 May 22 Minute Order.) This case was not related to the other two

cases. (See *ibid.*) A notice of

related cases was filed in this case on May 11, 2026. The decision on that

notice is to be made by the department with the earliest filed case, which here

would be Department 730 because 26STCV06887 is the earliest filed case of the

purportedly related cases. (See California Rules of Court, Rule

3.300(h)(1)(A).)

Given that the present

case has not been related into a single department with either of the cases

Plaintiff seeks to have it consolidated with, the motion must be denied. (See LASC

Local Rule 3.3, subd. (g)(1).)

CONCLUSION

For the foregoing reasons,

Plaintiff’s Motion to Consolidate is DENIED without prejudice. If this

case is related to one or both of the cases for which consolidation has been

sought, Plaintiff may move to consolidate the cases in the appropriate

department.